

Court No. - 21

Case :- WRIT - C No. - 27064 of 2024

Petitioner :- M/S Mangalam Agro Foods

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Shiv Sagar Singh

Counsel for Respondent :- C.S.C.,Manu Ghildyal

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

1. On oral prayer made by learned counsel for the petitioner, he is permitted to correct the description of respondent no.2 in the cause title.
2. The petitioner has challenged the demand dated 03.07.2024 issued under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958. The demand is for recovery of alleged electricity dues, which is being disputed by the petitioner.
3. Shri Ishan Mishra holding brief of Shri Manu Ghildyal, learned counsel for the respondent-Electricity Department submits that the said dispute can be decided under Clause 6.5 of the Electricity Supply Code, 2005.
4. Accordingly, we **dispose of** the instant petition with liberty to the petitioner to file objection within two weeks alongwith true attested copy of the instant order and in which event, the same will be decided by the competent authority by a speaking order within next four weeks.
5. Until decision is taken, the impugned recovery will remain in abeyance and will, thereafter, abide by the decision that would be taken on the objection of the petitioner. In case no objection is filed within two weeks, it shall be open to the respondent-Electricity Department to proceed further in the matter in accordance with law.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Order Date :- 28.8.2024

Ankit.